

23STCV17567 23STCV17567

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Case Number: 23STCV17567 Hearing Date: June 25, 2026 Dept: 617

Dept.

617

Date:

6-25-26

Case

#: 23STCV17567

Trial

Date: 7-6-26

SUMMARY JUDGMENT

MOVING

PARTY: Defendant, Vivian Yamaguchi

RESPONDING

PARTY: Unopposed/Defendant, Patricia Munoz

RELIEF

REQUESTED

Motion

for Summary Judgment

SUMMARY

OF ACTION

On

July 26, 2023, Plaintiff Integrated Lender Services filed a complaint in interpleader against Defendants Sharon Munoz, Patricia Munoz, and Vivian Yamaguchi. Plaintiff alleged the complaint arises from a surplus balance of \$344,954.56 following the August 3, 2022, non-judicial foreclosure sale of 732-734 Leonard Ave., Los Angeles, CA 90022. Plaintiff alleged the complaint in interpleader was necessary due to competing claims for the surplus funds amongst Defendants.

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answered the complaint on September 26, 2023. Patricia Munoz filed an answer and amended answer on October 23, 2023, and December 14, 2023. Default was entered against Sharon Munoz on October 10, 2023. Plaintiff was dismissed from the action on November 6, 2024.

RULING: Granted.

Yamaguchi moves for summary judgment, arguing that no triable issue of material fact exists that she is the rightful owner of the interpleaded funds. Patricia Munoz does not oppose the motion. Yamaguchi's motion is granted.

The pleadings frame the issues for motions, "since it is those allegations to which the motion must respond. (Citation.)" (*Scolinos v. Kolts* (1995) 37 Cal. App. 4th 635, 640-641; *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 382-83; *Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp.* (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

"On

a motion for summary judgment, the initial burden is always on the moving party

to make a prima facie showing that there are no triable issues of material fact.” (Scaif v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1041 (citation omitted))

Yamaguchi contends that no triable issue of material fact exists as to her ownership of the funds because Edward and Patricia Munoz transferred the property to her via grant deed.

“A deed does not transfer title to the grantee until it has been legally delivered.” (Luna v. Brownell (2010) 185 Cal.App.4th 668, 673; Code Civ. Proc., § 1054.) “Delivery is a question of intent.” (Luna, supra, 185 Cal.App.4th at p. 673.) “A valid delivery of a deed depends upon whether the grantor intended that it should be presently operative, and a manual transfer is not conclusive evidence of such intention.” (Ibid.) “The trier of fact must determine intent by reviewing all of the surrounding circumstances of the transaction.” (Ibid.) “In addition, acceptance by the grantee is necessary to make a delivery effective and the deed operative. Whether the deed was accepted by the grantee so as to complete a transfer of title to him is likewise a question of fact for the trial court.” (Ibid.)

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has satisfied her burden. On January 31, 2011, Edward and Patricia Munoz gave Yamaguchi a grant deed to the property in exchange for monthly mortgage payments. [Yamaguchi Decl. ¶¶ 3-5.] Patricia has admitted the genuineness of the notarized grant deed containing both Edward and Patricia's signatures. [Creekmore Decl. ¶¶ 8, 11, Exs. 7, 10.] Yamaguchi made mortgage payments until October 2015. [Ibid.; Yamaguchi Decl. ¶ 6.] These facts show the requisite intent for immediate transfer of title via the grant deed and Yamaguchi's acceptance through monthly mortgage payments. The unopposed motion is therefore granted.

The

July 6, 2026 Final Status Conference and trial date are vacated. Yamaguchi to submit a judgment.

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to give notice.